

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
DASHAWN McCLAM,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

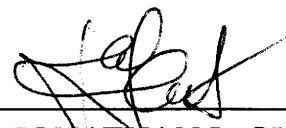
CITY OF NEW YORK, Det. RICHARD LENNOX,
UNDERCOVER OFFICER Shield 323 and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers
presently unknowable by Plaintiff,
Defendants.

The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
December 1, 2017


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007
Det. Richard Lennox, Shield No. 2289 and Undercover Officer Shield No. 323
NARCBX, 1 Police Plaza, NY NY 10038 - Room 1310

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DASHAWN McCLAM,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. RICHARD LENNOX,
UNDERCOVER OFFICER Shield 323, and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious
and meant to designate additional offending officers
presently unknowable by Plaintiff,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF DASHAWN McCLAM

1. At the time of the commencement of this action, plaintiff DASHAWN McCLAM was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about September 23, 2016, Det. RICHARD LENNOX was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about September 23, 2016, at approximately 3 P.M., Det. RICHARD LENNOX was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about September 23, 2016, UNDERCOVER OFFICER Shield 323, whose name has been withheld by Defendants, is within their exclusive knowledge and therefore presently unknowable by Plaintiff but who was involved in the subject arrest of Plaintiff, was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about September 23, 2016, at approximately 3 P.M., UNDERCOVER OFFICER Shield 323 was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about September 23, 2016, OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about September 23, 2016, at approximately 3 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about September 23, 2016 at approximately 3 P.M., at or near the intersection of East 172nd Street and Hoe Avenue, Bronx, New York, the Plaintiff DASHAWN McCLAM was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine DASHAWN McCLAM.

12. That immediately prior thereto, the plaintiff DASHAWN McCLAM was lawfully walking on the sidewalk near the above location.

13. That immediately thereafter a police officer arrived and approached, questioned, detained and searched Plaintiff.

14. That the Defendants, their agents, servants and/or employees arrested the Plaintiff DASHAWN McCLAM without any basis in law or fact and without reasonable, probable or just cause or justification.

15. That the defendants, their agents, servants and/or employees arrested the plaintiff DASHAWN McCLAM without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.
16. That the defendants Det. RICHARD LENNOX, UNDERCOVER OFFICER Shield 323 and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.
17. That Defendants, their agents, servants and/or employees continued to prosecute Plaintiff DASHAWN McCLAM and threaten and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.
18. That the Defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff DASHAWN McCLAM, who was aware of his unlawful detention and confinement and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

19. The commencement of the criminal proceedings, which was assigned Docket No. 2016BX041657 in the Criminal Court of the City of New York, Bronx County, was malicious and begun with actual malice and without probable cause.

20. That on January 3, 2017 all criminal charges were dismissed by Hon. Denise M. Dominguez, a Judge of the aforesaid Court, and the prosecution was terminated in Plaintiff's favor.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

22. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

23. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

24. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

25. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

26. Furthermore patterns of the NYPD and their officers alleging persons were involved in the sale of narcotics when the arrested persons were not, in fact, in any way involved in the sales of narcotics, and there was no probable cause to arrest said persons has occurred to such individuals as Jonathan Bailey on August 3, 2011; Jose Reyes on December 14, 2011; Frank Aquino on August 22, 2012; Martin Delozier and Terrance Watson on October 12, 2012; Bryan Madera on April 8, 2013; Anthony Jones on June 5, 2013; Manuel Lugo on June 14, 2013; Derrick Gray on September 5, 2014, Renard Grooms on September 10, 2014; Ruben Perez on July 20, 2015; John Lawrence on August 3, 2015 as well as hundreds of other innocent persons know to the defendants by virtue of the dismissal of all charges against such persons, for, amongst other reasons, a lack of evidence, and complaints, claims and actions brought against said officers, and upon the CITY OF NEW YORK's own tabulations and investigations.

27. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

28. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff DASHAWN McCLAM of

rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

29. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

30. That as a result of the foregoing, the Plaintiff DASHAWN McCLAM was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DASHAWN McCLAM

31. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 30 as though more fully set forth herein.

32. That on September 23 2017, and pursuant to the Order of Justice Mitchell Danziger of the Bronx County Supreme Court under Index No. 28397/17, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the Claimant, to be presented to the Defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the

defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the Claimant and Claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

33. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

34. The aforesaid Order directed the CITY OF NEW YORK to Notice Plaintiff of a General Municipal Law § 50-h hearing within 45 days of said Order, which time period has passed without the CITY OF NEW YORK having so Noticed Plaintiff.

35. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

36. That on or about September 23, 2016 at approximately 3 P.M., at or near the intersection of East 172nd Street and Hoe Avenue, Bronx, New York, the Plaintiff DASHAWN McCLAM was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest DASHAWN McCLAM.

37. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff DASHAWN McCLAM of Due Process under Law.
38. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, Det. RICHARD LENNOX, UNDERCOVER OFFICER Shield 323 and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the Defendants' actions amounted to False Arrest, and the Defendants were otherwise careless, reckless and negligent.
39. That the Plaintiff DASHAWN McCLAM, being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Det. RICHARD LENNOX, UNDERCOVER OFFICER Shield 323 and OFFICER[S] JOHN AND/OR JAMES DOE.
40. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
41. That as a result of the foregoing, the plaintiff DASHAWN McCLAM was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DASHAWN McCLAM

42. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 41 as though more fully set forth herein.

43. That the Defendants, their agents, servants and/or employees initiated and prosecuted a criminal action against the Plaintiff DASHAWN McCLAM without any basis in law or fact.

44. That the Defendants, their agents, servants and/or employees initiated and continued to prosecute the criminal action against the Plaintiff DASHAWN McCLAM due to prejudice or with malice and without any basis in law or fact.

45. That the defendants Det. RICHARD LENNOX, UNDERCOVER OFFICER Shield 323 and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff DASHAWN McCLAM thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

46. That Defendants, their agents, servants and/or employees continued to prosecute Plaintiff DASHAWN McCLAM and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

47. The commencement of the criminal proceedings, which was assigned Docket No. 2016BX041657 in the Criminal Court of the City of New York, Bronx County, was malicious and begun with actual malice and without probable cause.

48. That on January 3, 2017 all criminal charges were dismissed by Hon. Denise M. Dominguez, a Judge of the aforesaid Court, and the prosecution was terminated in Plaintiff's favor.

49. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

50. As a result of the malicious prosecution, Plaintiff was deprived of liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiff was required to make court appearances to defend his liberty against these unjust charges, and suffered thereby for a period of approximately one hundred and two days.

51. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

52. That as a result of the foregoing, the Plaintiff DASHAWN McCLAM was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DASHAWN McCLAM

53. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 52 as though more fully set forth herein.

54. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

55. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals.

56. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff DASHAWN McCLAM was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the

purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

57. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
December 1, 2017



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

DASHAWN McCLAM

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Richard Lennox, Shield No. 2289 and Undercover Officer Shield No. 323
NARCBBX, 1 Police Plaza, NY NY 10038 - Room 1310

PLAINTIFF'S VERIFICATION

DASHAWN McCLAM affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

Dashawn McClam

DASHAWN McCLAM

December 1, 2017

[Signature]

Notary Public

JONATHAN LOUIS GLEIT
Notary Public, State of NY
No. 31-4979332

Qualified in Westchester County
Commission Expires March 25, 2019